



Department of Labor and Employment

Division of Family and Medical Leave Insurance

REGULATIONS CONCERNING BENEFITS AND EMPLOYER PARTICIPATION REQUIREMENTS

7 CCR 1107-3

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

3.1 Statements of Authority, Purpose, and Incorporation by Reference

1. This regulation is adopted pursuant to the authority in section C.R.S. § 8-13.3-501. et seq., and is intended to be consistent with the requirements of the State Administrative Procedures Act, C.R.S. § 24-4-101 et seq. (the "APA"), and the Paid Family and Medical Leave Insurance Act, C.R.S. §§ 8-13.3-501 through 524 (the "Act").
2. The general purpose of these rules is to exercise the authority of this Division to enforce and implement the Paid Family and Medical Leave Insurance Act (C.R.S. § 8-13.3-501 et seq.) with regard to benefits and employer participation.
3. 29 C.F.R. §§ 825.102, 825.113, 825.114, 825.115, and 825.119(a) (2025) are hereby incorporated by reference. Earlier versions of such laws and regulations may apply to events that occurred in prior years. Such incorporation excludes later amendments to or editions of the statutes and regulations. These statutes and regulations are available for public inspection at the Colorado Department of Labor and Employment, Division of Family and Medical Leave Insurance, 707 17th Street, Denver, CO 80202. Copies may be obtained from this Division at a reasonable charge, or can be accessed electronically from www.ecfr.gov. Pursuant to C.R.S. § 24-4-103(12.5)(b), the agency shall provide certified copies of the statutes and regulations incorporated at cost upon request or shall provide the requestor with information on how to obtain a certified copy of the material incorporated by reference from the agency originally issuing the statutes. All Division Rules are available to the public at famli.colorado.gov.
4. If any part of these rules is held invalid, the remainder shall remain valid, and if any part is held not wholly invalid, but in need of narrowing, it will be retained in narrowed form.

3.2 Definitions and Clarifications

1. Unless otherwise indicated, terms used here that are defined in the FAMLI Act have the same definition as they do under the FAMLI Act.

2. “Application year” as used at C.R.S. § 8-13.3-505(1), and “benefit year” as used at C.R.S. § 8-13.3-521(1)(b) are both defined as “application year” under C.R.S. § 8-13.3-503(1). The 12-month period is measured forward from the date the claim is filed. Under this “measured forward” method, an employee would be entitled to the leave amounts described at C.R.S. § 8-13.3-505(1) during the year beginning on the first date a claimant files for paid family and medical leave, and the next 12-month period would begin the first time the claimant files for paid family and medical leave after the completion of any 12-month period. Solely for the purpose of determining the application year, the date the claim is filed is the benefit start date.
3. “Benefit start date” means the first day the covered individual is unable to work for which benefits are approved.
4. “Benefit year,” for purposes of applying the definitions of “base period” at C.R.S. § 8-70-103(2) and “alternative base period” at C.R.S. § 8-70-103(1.5), means “application year” as defined at Section 3.2.2 of these rules.
5. “Business Days” means Monday, Tuesday, Wednesday, Thursday, and Friday, and excludes any Colorado state holidays, as listed in C.R.S. § 24-11-101.
6. “Calendar week” means any period of seven consecutive days.
7. “Claimant” means a person who has filed a claim for paid family and medical leave insurance benefits, regardless of whether the person is a covered individual pursuant to C.R.S. § 8-13.3-503(3).
8. “Continuous leave” means one non-recurring, uninterrupted period of leave.
9. “Days” means calendar days unless otherwise specified as a business day, as defined by these rules.
10. “Designated Representative” means a person legally authorized to make decisions on behalf of a claimant, with regard to the FAML I program. That legal authorization may be through written designation from the claimant or through legal status as a parent, guardian, conservator, or power of attorney. If the claimant is unable to file a claim or authorize a designated representative due to the claimant’s medical incapacitation, a claimant’s family member may serve as a designated representative without prior authorization from the claimant. For safe leave applications, the alleged perpetrator of domestic violence, stalking, sexual assault, or sexual abuse may not be the claimant’s designated representative. An entry of appearance by an attorney who is licensed and in good standing shall be sufficient to establish the attorney’s status as a designated representative. A claimant may revoke an individual’s designated representative status at any time.
11. “Good cause” means that a reasonably prudent individual under the same or similar circumstances would have been prevented from complying with deadlines established by the FAML I Act and its implementing regulations. Good cause

exceptions to requirements in these rules are limited to those requirements that expressly allow for a good cause exception. In determining whether good cause exists, all relevant factors may be considered, including but not limited to:

- A. Whether the requestor received timely and adequate notice of the need to act;
 - B. Administrative error by the Division or its representatives, or the failure of the Division or its representatives to discharge its responsibilities;
 - C. Factors outside the control of the requestor which prevented a timely action;
 - D. The requestor's physical or mental impairment, particularly if the impairment is related to the request for paid leave;
 - E. Whether the requestor acted diligently in submitting the request once the reason for the late request no longer existed;
 - F. The total length of time that the action was untimely;
 - G. Whether the delay affects the ability of the Division or private plan administrator to determine the validity of the request for paid family and medical leave insurance benefits; and
 - H. Good faith error, provided that in determining whether good faith error constitutes good cause, the Division or private plan administrator shall consider any prior history of such errors, whether the request is excessively late, and whether the requestor otherwise acted with due diligence.
12. "Health care provider" as defined by C.R.S. § 8-13.3-503(13) is limited to an individual licensed, certified, or registered under Colorado law to provide medical or emergency services or an individual with a National Provider Identifier ("NPI") number issued by the National Plan and Provider Enumeration Service ("NPPES") who is licensed, certified, or registered to provide medical or emergency services. A health care provider may only certify the need for FAMLI leave if such certification is within the diagnostic scope of their licensure, certification, or registration. "Medical or emergency services" means treatment for any physical or mental condition giving rise to a serious health condition.
13. "In loco parentis" means a relationship in which a person puts himself or herself in the situation of a parent by assuming and discharging the obligations of a parent to a child. Although no legal or biological relationship is necessary, grandparents or other relatives, such as siblings, may stand in loco parentis to a child as long as the relative satisfies the in loco parentis requirements. Persons who are in loco parentis include those with day-to-day responsibilities to care for or financially support a child. In determining in loco parentis status, the Division

will consider the age of the child; the degree to which the child is dependent on the person; the amount of financial support, if any, provided; and the extent to which duties commonly associated with parenthood are exercised. The fact that a child has a biological parent in the home, or has both a mother and a father, does not prevent an employee from standing in loco parentis to that child. The FAMLI Act does not restrict the number of parents a child may have. The specific facts of each situation will determine whether an individual stands in loco parentis to a child.

14. “Intermittent leave” means leave taken in separate blocks of time due to a single qualifying reason.
15. “Material fact” means any fact that could substantially impact the outcome of an individual’s entitlement to family and medical leave insurance benefits.
16. “Neonatal intensive care unit” means a hospital-based unit designated by the inpatient facility as a neonatal intensive care unit and equipped to provide continuous, specialized medical care for critically ill or medically fragile infants. This definition excludes well-baby nurseries, pediatric intensive care units (PICUs), and any other inpatient setting not classified explicitly by the treating facility as a neonatal intensive care unit, except that this definition does include other intensive care units into which the infant was transferred directly after birth or from the unit classified as a neonatal intensive care unit if the transfer was due to an escalation in the infant’s medical needs.
17. “Neonatal care leave” means a separate and distinct leave entitlement under C.R.S. § 8-13.3-505(1)(b) that provides up to twelve (12) additional weeks of paid family and medical leave benefits to a covered individual who is providing care for their infant receiving inpatient treatment in a neonatal intensive care unit. The leave is available only for the duration that the infant remains admitted to a neonatal intensive care unit. The leave is available for qualifying absences from work on or after January 1, 2026, and neither the fact that an infant was receiving inpatient treatment in a neonatal intensive care unit prior to that date, nor the fact that a covered individual took FAMLI leave to care for that infant prior to that date, precludes an award of neonatal care leave.
18. “Reduced leave schedule” means a fixed and specific leave schedule that reduces an employee’s usual number of working hours per workweek, or hours per workday. A reduced leave schedule is a fixed and specific change in the employee’s schedule for a period of time, normally from full-time to part-time.
19. “Regular work schedule” means the number of weekly hours an individual works at any job, plus the number of weekly hours they would have worked but for any paid holidays and other paid leave, including paid family and medical leave. If the number of weekly hours cannot be determined, the average number of weekly hours worked over the four weeks prior to the benefit start date may be used. The individual’s regular work schedule is calculated for each job individually and

then aggregated to determine their aggregate regular work schedule for each week. For the purpose of calculating the individual's regular work schedule, "job" means any arrangement where an individual is paid for their services, including self-employment, gig work, and all employment, regardless of whether it is covered under the FAMLI Act.

20. "Self-employed individual" has the same meaning as in 7 CCR 1107-1.
21. "Wage replacement benefit" means the monetary weekly benefit amount described at C.R.S. § 8-13.3-506.
22. "Wages" has the same meaning as "wages" as defined in 7 CCR 1107-1. Wages are "earned" pursuant to C.R.S. § 8-13.3-503(3)(a)(I) on the date that they are paid or payable to the employee.
23. "Wages subject to premiums" as used in C.R.S. § 8-13.3-503(3)(a) include wages paid to an employee by an employer with an approved private plan, wages paid to an employee by an employer under the state plan, and wages paid from either self-employment or local government employment to individuals after such individuals elect coverage pursuant to C.R.S. § 8-13.3-514. Self-employment and local government wages earned by individuals who have elected coverage pursuant to C.R.S. § 8-13.3-14 are not considered wages subject to premiums if they are paid outside of the individual's elective coverage period, and will not be used to calculate benefits if they are paid outside of the individual's elective coverage period.
24. "Willful" or "willfully" as used in the FAMLI Act or its implementing regulations means the employer or individual knew or showed reckless disregard for whether its conduct was prohibited by the FAMLI Act or its implementing regulations.

3.3 Employer Participation Requirements

1. Employers, including local government employers that decline participation in the FAMLI program, and employers who meet their obligations under the FAMLI Act through an approved private plan, must register with the FAMLI Division via "MyFAMLI+ Employer" by January 1, 2023, or when they become an employer, whichever occurs later. If the Division determines that an employer has violated this section, it may assess upon the employer a fine of up to \$500.00.
 - A. Any entity that registers one or more accounts with the FAMLI Division via "My FAMLI+ Employer" on behalf one or more employers is prohibited from registering unnecessary accounts, including but not limited to accounts for fake or illegitimate employers, and accounts for employers with no employees whose work is localized to Colorado pursuant to 7 CCR 1107-1, Section 1.6. If the Division determines that an entity registered unnecessary accounts, the Division may assess upon the entity a fine of up to \$500.00 per violation.

- B. Within seven (7) days of a request by the Division, any entity that bulk registers multiple accounts with the FAMLI Division via “My FAMLI+ Employer” on behalf of multiple employers must submit to the FAMLI Division a document describing the methods by which it (1) determines that a registrant is a legitimate employer, and not a fraudulent, fake, or illegitimate entity; and (2) determines that the employer needs to register an account with My FAMLI+ Employer in accordance with the FAMLI Act and its implementing regulations. If the entity does not provide the Division with the requested verification document within seven (7) days, the Division may assess upon the entity a fine of up to \$500.00 per violation.
- 2. Employers participating in the state plan must submit accurate wage reports to the Division on the same quarterly schedule as they must submit premiums to the Division pursuant to 7 CCR 1107-1.
 - A. If an employer fails to timely submit reasonably accurate wage reports, the Division may assess upon the employer a fine of up to \$50.00 per employee whose wages were not reported timely or accurately, and per employee whose wages were unnecessarily reported.
 - B. If an employer submits an amended wage report after the due date to submit premiums pursuant to 7 CCR 1107-1, and the amended wage report increases premiums owed by twenty-five (25) percent or more, then the wage report shall not be considered timely regarding those employees whose wages were amended.
- 3. An employer must notify the Division within 10 business days if it ceases business operations in Colorado or otherwise ceases to employ Colorado employees, in accordance with the provisions of 7 CCR 1107-1 regarding localization of employees. An employer with no Colorado employees will not be required to remit premiums, submit wage reports, or otherwise participate in the FAMLI program. If the employer later resumes business operations or again employs workers in Colorado, it must register with the FAMLI Division via “MyFAMLI+ Employer.” If the Division determines that an employer has violated this section, it may assess upon the employer a fine of up to \$250.00.
- 4. The My FAMLI+ portal, the My FAMLI+ Employer portal, and the contact information therein provided by employers, individuals electing coverage, and claimants are the official methods by which the Division communicates with such individuals and entities in order to deliver important benefits, premiums, and tax information. Employers, individuals electing coverage, and claimants must provide current accurate contact information to the Division, and must update that contact information to reflect any changes. Individuals are encouraged to contact the Division via telephone if they need assistance in updating information in either the My FAMLI+ or My FAMLI+ Employer portals. If the Division incurs any tax liability as a result of an employer’s failure to register an account with My FAMLI+ Employer or to maintain accurate contact information within My FAMLI+

Employer, the Division may assess upon the employer a fee, per benefits payment to a covered individual, up to the amount of tax liability incurred for that benefits payment.

5. The Division may allow a third-party administrator to satisfy an employer's registration and wage reporting obligations without the employer's prior authorization if the Division determines that: (1) the third-party administrator is legitimate, active, and in good standing with the industry; (2) the third-party is acting within the authority granted to it by the employer; and (3) the third-party is acting on behalf of an employer in good standing. In making this determination, the Division may require the third-party administrator to submit contract documents, Colorado Secretary of State filings, or any other necessary documentation.

3.4 Clarifications Regarding Use of Paid Family and Medical Leave Insurance Benefits

1. The use of paid family and medical leave insurance benefits is restricted to absences caused by a qualifying condition described at C.R.S. § 8-13.3-504(2). If the absence is caused by a reason other than a qualifying condition described at C.R.S. § 8-13.3-504(2), paid family and medical leave insurance benefits are not available. Except for holiday absences during continuous leave as described in these rules, an absence is caused by a qualifying condition only if it would not have occurred but for the qualifying condition.
 - A. If a covered individual is awarded continuous leave or any neonatal care leave for an absence caused by a qualifying condition described at C.R.S. § 8-13.3-504(2), the awarded leave is not impacted by a subsequent separation from employment, except when the individual receives unemployment benefits in accordance with 7 CCR 1107-4, Section 4.4, or when the Division determines that the individual is ineligible for benefits in accordance with the FMLI Act and its implementing regulations, in either which case the benefits award ends.
 - B. If a covered individual is awarded intermittent leave or reduced leave schedule for an absence caused by a qualifying condition described at C.R.S. § 8-13.3-504(2) other than neonatal care leave, and subsequently becomes unemployed or changes employers, the awarded leave terminates upon unemployment or the change in employment, and the covered individual may apply for benefits upon reemployment. An individual becomes unemployed within the meaning of this rule if they are terminated, they resign, or no work is available to them due to a cessation in operations, the end of seasonal employment, the end of a temporary work assignment, or any other reason that causes the cessation of available work.

2. For purposes of determining the amount of leave used by an employee, the fact that a holiday may occur within a period of continuous leave has no effect; the time is counted as FAML I leave and the employee will receive wage replacement benefits for that time. However, if an employee is using FAML I leave in the form of intermittent leave or reduced leave schedule, the holiday will not count against the employee's FAML I entitlement—and the employee will not receive wage replacement benefits for the holiday—unless the employee was otherwise scheduled and expected to work during the holiday. Similarly, if for some reason the employer's business activity or the employee's position have temporarily ceased and the employee is not expected to report for work for one or more weeks, the days the employer's activities or the employee's position have ceased do not count against the employee's FAML I leave entitlement and the employee will not receive wage replacement benefits for them, unless they are on continuous leave that began before the cessation in operations.
3. Paid family and medical leave insurance benefits are available to an individual while taking paid family and medical leave from employment if the individual meets the definition of “covered individual” under C.R.S. § 8-13.3-503(3) and has a qualifying condition described at C.R.S. § 8-13.3-504(2).
 - A. To determine whether an individual has met the \$2,500.00 threshold described at C.R.S. § 8-13.3-503(3)(a)(I), the Division will rely on wages reported to the Division by the employer pursuant to these rules. If a claim for benefits is denied because the reported wages do not establish that the individual has met the \$2,500.00 threshold, the individual may request a reconsideration pursuant to Section 3.11 of these rules.
 - B. An individual claimant can meet the \$2,500.00 threshold described at C.R.S. § 8-13.3-503(3)(a)(I) by earning wages subject to premiums from any combination of employers, and a claimant need not earn \$2,500.00 from their current employer to meet the threshold
 - C. An individual meets the \$2,500.00 threshold described at C.R.S. § 8-13.3-503(3)(a)(I) if the individual has been paid that amount of wages during either the individual's base period, as defined at C.R.S. § 8-70-103(2), or the individual's alternative base period, as defined at C.R.S. § 8-70-103(1.5).
4. Paid family and medical leave insurance benefits are available for absences occurring on or after January 1, 2024 caused by a qualifying condition described at C.R.S. § 8-13.3-504(2), regardless of the onset date of the qualifying condition.
5. “Serious health condition” determinations by the Division will be in accordance with 29 C.F.R. §§ 825.102, 825.113, 825.114, 825.115, and 825.119(a), except where those regulations conflict with the FAML I Act or its implementing regulations.

6. “Care” for a family member includes assistance with basic medical, hygienic, nutritional, safety, transportation needs, physical care, or psychological comfort.
7. To determine whether an individual is a family member under C.R.S. § 8-13.3-503(11)(e) because the individual is someone with whom the covered individual has a significant personal bond that is or is like a family relationship, the Division will look to the totality of the circumstances surrounding the relationship, including, but not limited to, the following non-dispositive factors:
 - A. Shared financial responsibility, including shared leases, common ownership of real or personal property, joint liability for bills, or beneficiary designations;
 - B. Emergency contact designations;
 - C. The expectation of care created by the relationship and/or the prior provision of care;
 - D. Cohabitation and the duration thereof; and
 - E. Geographical proximity.
8. Clarifications regarding “caring for a new child” under C.R.S. § 8-13.3-504(2)(a):
 - A. “Caring” includes bonding with and providing basic needs for a new child.
 - B. “Child” means a person who is either under the age of 18, or between the ages of 18 and 21 and remains under the jurisdiction of a juvenile court.
 - C. Benefits under C.R.S. § 8-13.3-504(2)(a) are limited to 12 weeks per qualifying condition, and are limited to biological parents, adoptive parents, foster parents, step-parents, individuals standing in loco parentis to the child, and domestic partners of any of the individuals listed in this Section 3.4.7.C.
 - D. If a person has received benefits under C.R.S. § 8-13.3-504(2)(a) to care for a new child placed through foster care, and the person later adopts the child, the person is not entitled to again receive benefits under C.R.S. § 8-13.3-504(2)(a) in relation to the adoption of the same child.
9. Clarifications regarding “safe leave” under C.R.S. § 8-13.3-503(18) and 504(2)(e):
 - A. To determine whether an individual is the victim of domestic violence, the victim of stalking, or the victim of sexual assault or abuse, for purposes of determining eligibility for safe leave, an individual need not prove that a court has determined that the individual was the victim of domestic violence, stalking, sexual assault, or sexual abuse.

- B. Benefits may be awarded based on the victim's good-faith attestation that the circumstances giving rise to the safe leave satisfy the elements of the offense.
 - C. If an individual is granted safe leave based on their good-faith attestations, and is later found by a court not to have been a victim of domestic violence, stalking, sexual assault, or sexual abuse, benefits paid for the leave will not be considered an overpayment unless a court's findings show that the attestations were not in good faith.
10. Clarifications regarding "neonatal care leave" under C.R.S. § 8-13.3-505(1)(b):
- A. Neonatal care leave is only available for parents of the infant and individuals standing in loco parentis to the infant.
 - B. Benefits under C.R.S. § 8-13.3-505(1)(b) are limited to a maximum of twelve (12) weeks per infant.
 - C. For the purposes of satisfying the eligibility requirements of C.R.S. § 8-13.3-504(2) and triggering concurrency described at C.R.S. § 8-13.3-510(1), neonatal care leave constitutes leave to care for a family member with a serious health condition.
 - D. Neonatal care leave is distinct from leave to care for a new child under C.R.S. § 8-13.3-504(2)(a), and does not reduce or limit the claimant's entitlement to other types of paid leave under the FAMLI Act.
 - E. Neonatal care leave may be taken for as much or as little of an individual's regular work schedule as the individual chooses, and the individual's choice may change from day to day or from week to week. Covered individuals must report their neonatal care leave weekly.
 - F. A covered individual taking neonatal care leave may miss a whole day of work for any day that the infant is in the neonatal intensive care unit, regardless of how much time the infant was in the neonatal intensive care unit that day.
 - G. Claimants must notify the Division via My FAMLI+ when their neonatal care leave has ended because the infant is no longer receiving care in a neonatal intensive care unit, because the claimant has exhausted their available neonatal care leave, because the claimant has become ineligible for neonatal care leave, or because of any other reason communicated by the claimant. Within fourteen (14) days of such notification, the claimant must submit to the Division documentation from the treating facility confirming either: (1) discharge of the infant from the neonatal intensive care unit; or (2) continued inpatient treatment in the neonatal care unit.

- H. If the claimant has not ended their neonatal care leave at the end of the twelfth (12th) calendar week following the benefit start date, the Division may require the claimant to submit discharge or continuing treatment documentation within fourteen (14) days of the Division's request. If the claimant submits documentation of continuing treatment at this time, has not utilized twelve (12) weeks of neonatal care leave, and their neonatal care leave continues beyond the twelfth (12th) calendar week following the benefit start date, the claimant remains obligated to notify the Division when their neonatal care leave has ended and to timely submit the required discharge or continuing treatment documentation. If the claimant has not closed the claim within six (6) months after the benefit start date, the Division will end the claim and will require the claimant to provide discharge or continuing treatment documentation within fourteen (14) days.
 - I. Failure to provide timely documentation of discharge or continuing treatment may result in a retroactive denial of the claim for neonatal care leave, and the claimant may request a reconsideration of such a denial in accordance with Section 3.11 of these rules. If the claimant provides sufficient documentation of discharge or continuing treatment, the Division will modify or reverse the retroactive denial.
- 11. Pursuant to CRS 8-13.3-503(15), paid family and medical leave is leave taken from employment. If a claimant is not employed at the outset of their leave, then leave from employment is not possible and the claim for benefits will be denied. Examples of such denials include, but are not limited to, applications for leave to begin after the claimant has separated from their employer, applications for leave to begin during an off-season period in which a seasonal employee is not engaged in seasonal employment, and applications for leave to begin during periods of time between temporary placements by a staffing agency. A claimant must notify the Division if they become separated from employment before their benefit start date.
 - 12. An additional four weeks of leave per benefit year for leave due to a serious health condition related to pregnancy complications or childbirth complications available under C.R.S. § 8-13.3-505(1) may not exceed four weeks per pregnancy.
 - 13. Covered individuals are not eligible for benefits for any period in which they are not localized to Colorado pursuant to 7 CCR 1107-1, Section 1.6.
 - 14. Paid family and medical leave includes travel time reasonably necessary to satisfy a qualifying leave reason under C.R.S. § 8-13.3-504(2).

3.5 Amount, Duration, and Format of Benefits

1. The Division will calculate a covered individual's average weekly wage in accordance with C.R.S. § 8-13.3-503(2) and 506(2) based on their wages subject to premiums. Wages from a current job will be excluded from the average weekly wage calculation only if the covered individual is not taking any paid family and medical leave from that job as of the benefit start date.
2. The Division will calculate the covered individual's weekly benefit in accordance with C.R.S. § 8-13.3-506(1)(a). The covered individual shall receive their weekly benefit amount multiplied by their FAMLI weekly usage for each week of leave, subject to limitations under C.R.S. § 8-13.3-505(3) and Section 3.5.5 of these rules.
3. FAMLI weekly usage shall be determined by dividing the number of hours of family and medical leave the individual takes per week by their aggregate regular work schedule for that week.
 - A. The hours of family and medical leave taken for any job cannot exceed the regular work schedule for that job.
 - B. If a covered individual is unable to provide the Division with the number of scheduled or worked hours for any job during their leave, the Division may, at its discretion and based on previous work schedules or other information available to it, assign a reasonably approximate regular work schedule.
 - C. If an individual's regular work schedule increases or decreases during their leave, the Division shall make any adjustments to benefit awards made necessary by that increase or decrease.
 - D. If the individual's work schedule for a job from which they are taking continuous family and medical leave decreases to zero (e.g. termination, resignation, suspension of position, scheduled academic break), the Division will not make adjustments to benefit awards based on that decrease.
 - E. Regular work schedule must be calculated as of the first date of the leave and, if applicable, upon notification from the claimant that their regular work schedule has changed.
4. To determine an individual's average weekly wage in accordance with C.R.S. § 8-13.3-503(2), the Division will rely on earnings reported to the Division pursuant to these rules. If the Division believes that earnings were incorrectly reported to the Division pursuant to these rules, the Division may request from the individual and/or the individual's current employer or employers documentation of the individual's earnings during the individual's base period or alternative base period, and may rely on that documentation and any other information that is

reasonable or reliable in order to calculate benefits in accordance with wages that should have been reported.

5. Absences of less than 8 hours may be approved, but wage replacement benefits will be paid in accordance with C.R.S. § 8-13.3-505(3). The 8-hour threshold must be met with each claim and each recertification period.
6. The Division will recalculate wage replacement benefit awards for in-progress awards of paid family and medical leave if the state average weekly wage changes, a change in regular work schedule triggers a recalculation in accordance with these rules, or the outcome of an appeal results in a change in awarded benefits. If the recalculation increases or decreases the wage replacement benefit amount, the Division will notify the covered individual and will adjust future payments accordingly. If the covered individual's employer has made a valid request for benefit amounts in accordance with Section 3.8.9 of these rules, the Division will notify the employer of any increases or decreases in the covered individual's wage replacement benefit amount.
7. The Division will award benefits for a reasonable duration in accordance with the details in the application, the documentation submitted, and where applicable, known standards of care. The awarded benefits must not exceed the duration limits described at C.R.S. § 8-13.3-505(1).
8. The duration of leave taken for any week for the purpose of C.R.S. § 8-13.3-505 shall be equal to FAMLII weekly usage for that week. 100% FAMLII weekly usage shall count as one week of duration used.
9. Approved leave may be taken in increments of one hour or less, in accordance with C.R.S. § 8-13.3-505(3).
10. Approved leave for any qualifying condition may be in the form of continuous leave, intermittent leave, or reduced leave schedule, except that neonatal care leave may be used flexibly and in accordance with the daily and weekly needs of the covered individual, as described in Section 3.4 of these rules. Prior employer approval is not needed to access any particular form of leave.
11. The amount and duration of family and medical leave benefits may be impacted by the receipt of workers' compensation benefits or unemployment insurance benefits, as detailed in 7 CCR 1107-4.
12. Benefit awards for approved leave are not impacted by the end of the claimant's benefit year that occurs during the approved leave.
13. Claimants, employers, and private plan administrators must provide the Division with any information necessary for the Division to calculate benefits.
14. A claimant is not eligible for paid family and medical leave benefits for continuous leave from an employer during any period for which they have already been

awarded benefits on a separate claim for leave from that same employer. However, a claimant may end a continuous leave claim for one qualifying reason early and begin any type of claim for another qualifying reason, regardless of whether they remain eligible for leave for the initial qualifying reason.

15. Family and medical leave approved by the Division and taken by the claimant is considered taken as part of the individual's maximum annual allotment of leave under C.R.S. § 8-13.3-505(1), and protected under C.R.S. § 8-13.3-509 and 7 CCR 1107-7, regardless of the benefit amount the covered individual is entitled to pursuant to the FAMLI Act and its implementing regulations.
16. From January 1, 2026 through December 31, 2026, the Division will withhold and remit to the Internal Revenue Service ("IRS") federal income tax from all benefits at a rate of 10% upon the claimant's election. For benefits paid on or after January 1, 2027, the Division will withhold and remit to the IRS Federal Insurance Contributions Act ("FICA") taxes and federal income taxes from benefits for leave to care for a covered individual's own serious health condition in accordance with IRS Rev. Rul. 2025-4 (Jan. 15, 2025). The Division does not determine an employer's tax liability, but starting January 1, 2027, the Division will deliver to the employer information sufficient to transfer any tax liability incurred as a result of any benefits being considered wages under Notice 2015-6, IRB 2015-5. Tax withholding represents the Division's compliance with federal law and does not constitute a determination that may be appealed pursuant to 7 CCR 1107-9. Employers and employees may raise any federal tax-related dispute with the IRS using the appropriate channels and forms.

3.6 Applying for Benefits

1. To request paid family and medical leave insurance benefits, the claimant or the claimant's designated representative must apply to the Division for benefits.
2. Applications may be submitted up to thirty (30) days prior to the benefit start date.
3. The claimant must provide any information necessary for the Division or private plan administrator to calculate benefits.
4. The Division will notify the claimant's employer of the application submission within five (5) business days.
5. Applications may be submitted up to thirty (30) days after the leave has begun. If the Division receives an application after thirty (30) days, but before ninety (90) days, the Division will consider the application if it includes evidence establishing good cause for the claimant's failure to submit the application within thirty (30) days.
6. Additional Documentation Requirements

- A. For leave necessary to care for a child because of birth, the claimant must submit the following documentation with their application:
 - 1. Proof of birth, which may include a birth certificate, documentation from a health care provider who provided care during the birth or recovery, or other vital records showing birth;
 - 2. Proof of parental status or in loco parentis status, which may include a birth certificate, documentation from a health care provider who provided care during the birth or recovery, other vital records showing parenthood, or a written statement establishing in loco parentis status;
 - 3. Documentation confirming the child's discharge from, or continued treatment in, a neonatal intensive care unit, if the claimant previously took neonatal care leave and has not yet submitted such documentation as required by Section 3.4 of these rules; and
 - 4. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- B. For leave necessary to care for a child because of adoption, the claimant must submit the following documentation with their application:
 - 1. Proof of adoption placement, which may include documentation from a court or an adoption agency; and
 - 2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- C. For leave necessary to care for a child because of placement through foster care, the claimant must submit the following documentation with their application:
 - 1. Either:
 - a. Proof that the claimant is either a licensed or certified foster parent and the child has been placed in their care; or
 - b. Documentation from a child placement agency as defined in C.R.S. § 26-6-903(6), the state department of human services, a county department of human services, or a court indicating a kinship or emergency placement was necessary to provide for the immediate care and safety of a minor child, and the person will be standing in loco parentis through a power of attorney or other legal designation; and

2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- D. For leave necessary to care for a family member with a serious health condition, the claimant must submit the following documentation with their application:
 1. A “Serious Health Condition Certification - Family Member Form” completed and signed by the family member’s health care provider; and
 2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- E. For leave necessary because of the claimant’s own serious health condition, the claimant must submit the following documentation with their application:
 1. A “Serious Health Condition Certification - Self Form” completed and signed by the health care provider; and
 2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- F. For leave due to a need for qualifying exigency leave, the claimant must submit the following documentation with their application:
 1. A “Military Exigency Leave Attestation Form” completed by the claimant; and
 2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- G. For leave due to a need for safe leave, the claimant must submit the following documentation with their application:
 1. A “Safe Leave Attestation Form” completed by the victim or a family member of the victim; and
 2. Any other reasonable information or documentation necessary to adjudicate the claim for benefits, as requested by the Division.
- H. For neonatal care leave, the claimant must submit the following:
 1. Documentation confirming the infant’s admission to a neonatal intensive care unit, issued by the treating facility;

2. Documentation establishing parental status or in loco parentis status, which may include but is not limited to: neonatal intensive care unit admission forms listing the claimant, a birth certificate, records from a health care provider who provided care during the birth or recovery, other vital records verifying parenthood, or a signed written statement attesting to in loco parentis status; and
 3. Any other reasonable information or documentation requested by the Division that is necessary to adjudicate the claim.
 4. In addition to the above documentation required with the application for benefits, the claimant must also submit documentation in accordance with Section 3.4.10 of these rules.
7. For applications for benefits requiring certification by a health care provider, the health care provider may not be the claimant or a family member of the claimant.
8. Applications may be submitted using My FAMLl+, the FAMLl Division's online benefits portal. Individuals are encouraged to contact the Division via telephone if they need assistance submitting an application.
9. Requirements for an application to be considered filed:
 - A. Upon receipt of an application for benefits, the Division will promptly review the application. If the Division needs more information or documentation to adjudicate the claim for benefits, it will make a reasonable effort to promptly obtain the additional information or documentation. If the Division needs additional information or documentation from the claimant, it will make a reasonable effort to obtain it using the claimant's preferred language and method of contact. The Division will promptly review any additional information it receives.
 - B. An application will not be considered filed until all required information and documentation has been received by the Division, and the Division has been notified that the paid family and medical leave has begun.
 - C. If an application is not properly filed within sixty (60) days after the Division receives it, the application will be closed and the Division will take no further action on it, absent a finding of good cause based on evidence submitted by the claimant. The Division will notify the claimant prior to any such closure in their preferred language and method of contact, and will describe the claimant's opportunity to establish good cause to keep the application open.
 - D. Once an application is properly filed, the Division will notify the claimant and the employer of the proper filing within five (5) business days.

- E. The FAMLI Division may at any time determine that it needs more information or documentation to adjudicate a claim, thereby rendering the claim not properly filed. The two-week (14-day) deadline described in C.R.S. § 8-13.3-505(2) and Section 3.9.1 below, does not begin until the claimant has responded to all Division requests for information and documentation, and the Division has been notified that the paid family and medical leave has begun. If the claimant has responded to all Division requests for information and documentation, it is presumed that the claimant has provided all necessary information and documentation to adjudicate the claim unless the Division requests additional information or documentation.

3.7 Requirements Regarding Notice to Employees

1. Employers participating in the state plan must display the program notice described by C.R.S. § 8-13.3-511 in a conspicuous and accessible place in each establishment where employees are employed; provided, however, in cases where the employer does not maintain a physical workplace, or an employee teleworks or performs work through a web-based or app-based platform, notification must be sent via electronic communication or through a conspicuous posting in the web-based or app-based platform.
2. In addition to displaying the program notice described by C.R.S. § 8-13.3-511, employers participating in the state plan must individually deliver the program notice to employees upon hiring or transfer to Colorado and, absent extenuating circumstances, within five days after either learning of an employee experiencing an event that triggers eligibility pursuant to C.R.S. § 8-13.3-504, or receiving from the employee a request for protected leave under other family and medical leave laws. The employer shall deliver the program notice to the employee in the first language spoken by the employee if the employer is aware of the first language spoken by the employee; otherwise, the employer shall deliver the program notice in the first language spoken by the employee, upon the employee's request.
3. The program notice must be in English, Spanish, and in any language representing the first language spoken by at least five percent of the employer's workplace.
4. The Division will make a reasonable effort to provide a program notice in any language upon request from an employer.
5. If the Division determines that an employer has not posted or delivered the program notice in accordance with the FAMLI Act and its implementing regulations, the Division may assess upon the employer a fine of up to \$500.00 per violation. Each day that an employer fails to post or deliver the program notice constitutes a separate violation.

3.8 Requirements Regarding Notice to Employers

1. A claimant must schedule leave in accordance with C.R.S. § 8-13.3-505(4), and must notify their employer or employers of the need for leave in accordance with C.R.S. § 8-13.3-505(5). For individuals on intermittent leave, these scheduling and notice requirements apply to each absence. Notification need not include any specific terms or reference specific provisions of the FAML I Act or its implementing regulations, but must reasonably implicate qualifying leave under the FAML I Act to satisfy the notification requirement at C.R.S. § 8-13.3-505(5).
2. If the need for leave is foreseeable, a claimant must consult with the employer and make a reasonable effort to schedule leave so as not to unduly disrupt the employer's operations. If the claimant does not do so, the employer may initiate discussions with the employee and require the employee to attempt to make such arrangements, subject, where applicable, to the approval of the health care provider. An undue disruption requires significant difficulty or expense in relation to the resources and specific circumstances of the employer.
3. If the necessity for leave is not foreseeable, or providing 30 days' notice is not possible, the individual shall provide the notice as soon as practicable. As soon as practicable means as soon as both possible and practical, taking into account all of the facts and circumstances in the individual case. When an employee becomes aware of a need for leave less than 30 days in advance, it should be practicable for the employee to provide notice of the need for leave either the same day or the next business day. In all cases, however, the determination of when an employee could practicably provide notice must take into account the individual facts and circumstances.
4. A claimant's failure to schedule leave in accordance with C.R.S. § 8-13.3-505(4) or properly notify their employer or employers of the need for leave in accordance with C.R.S. § 8-13.3-505(5) does not change the Division's obligations to pay benefits on an approved claim within two weeks after the claim is filed under C.R.S. § 8-13.3-505(2) and these rules.
5. The Division shall not deny a claimant benefits for a failure to comply with C.R.S. § 8-13.3-505(4) or (5).
6. Employers may require the notice to contain the anticipated start time, anticipated duration, and where applicable, anticipated frequency of leave.
7. Such notification must be in the same manner as the claimant and employer typically communicate work availability, and absent unusual circumstances, must comply with the employer's usual and customary notice and procedural requirements for leave, unless those requirements are contrary to rights, benefits, or protections afforded to the claimant under the FAML I Act and its implementing regulations.

8. If an employer fails to post and deliver the program notice in accordance with C.R.S. § 8-13.3-511 and these rules, the employer may not punish or discipline an employee for failing to provide notice in accordance with C.R.S. § 8-13.3-505(5).
9. By submitting an application for benefits, the claimant consents to the Division sharing with the employer limited information necessary for the employer to comply with federal or state tax laws or tax regulations, or to coordinate FAML I benefits with other benefits for which the claimant is eligible, including the wage replacement amount and the reason for leave. The employer shall not request or access information that is not absolutely necessary for such tax law compliance or benefit coordination, and accessing or requesting information not absolutely necessary for such purposes may constitute discrimination, retaliation, and/or interference in violation of C.R.S. § 8-13.3-509. The employer must store and maintain the confidentiality of such information in accordance with all applicable federal, state, and local laws and regulations, and failure to do so may constitute discrimination, retaliation, and/or interference in violation of C.R.S. § 8-13.3-509.
10. Records and documents relating to medical certifications, recertifications, or medical histories of employees or employees' family members created for purposes of the FAML I must be maintained as confidential medical records in separate files/records from the usual personnel files. If the Division determines that an employer has not maintained such records confidentially and separately from usual personnel files, the Division may assess upon the employer a fine of up to \$500.00 per violation. If the Genetic Information Nondiscrimination Act of 2008 (GINA) is applicable, records and documents created for purposes of FAML I containing family medical history or genetic information as defined in GINA shall be maintained in accordance with the confidentiality requirements of Title II of GINA (see 29 CFR 1635.9). If the Americans with Disabilities Act (ADA) is also applicable, such records should be maintained in conformance with ADA confidentiality requirements, except that:
 - A. Supervisors and managers may be informed regarding necessary restrictions on the work or duties of an employee and necessary accommodations;
 - B. First aid and safety personnel may be informed if the employee's physical or medical condition might require emergency treatment; and
 - C. Division and/or other government officials investigating compliance with the FAML I Act should be provided relevant information upon request.
11. Consistent with the timeframes set forth in C.R.S. § 8-13.3-505(5), a claimant must notify the employer from which they are taking leave whether they will take continuous leave, intermittent leave, and/or a reduced leave schedule. Notification need not use the terms continuous leave, intermittent leave, or reduced leave schedule, but must reasonably implicate the type of leave they are

taking. Consistent with the timeframes set forth in C.R.S. § 8-13.3-505(5), a claimant must also give the employer reasonable details about their work and leave schedule.

12. A claimant must take reasonable steps to notify the employer in advance of any change in their planned work and leave schedule, which include following employer policies to request or change leave, unless those policies are contrary to rights, benefits, or protections afforded to the claimant under the FMLI Act and its implementing regulations.

3.9 Division Review of Applications

1. After an application is properly filed, the Division will adjudicate the claim within two weeks after filing.
2. The Division will contemporaneously notify the claimant and the employer of the outcome of the adjudication, and will provide information on how the claimant can appeal the outcome.
 - A. If the outcome is a denial of benefits, the Division will send separate notices to the claimant and to the claimant's employer or employers. The notice to the claimant will explain the reason for the benefits denial and will identify information or documentation necessary to perfect their claim for benefits. The notice to the claimant's employer or employers will state that the claim for benefits has been denied, include the date of the denial, and include a description of the claimant's appeal rights.
 - B. If the outcome of the adjudication is to award benefits, the Division will send separate notices to the claimant and to the claimant's employer or employers. Both notices will include the leave start date, the leave duration, any denied segments of requested leave, the claimant's regular work schedule upon which benefits were based, and where applicable, a description of any approved reduced leave schedule or intermittent leave. The notice to the claimant will also include the benefit amount. Upon the employer's valid request, the Division will share with the employer the benefit amount and reason for leave, in accordance with Section 3.8.9 of these rules.
3. If the Division awards benefits, it will issue payment for the benefits within two weeks after the application is filed, and where applicable, at least every two weeks thereafter.
4. For applications approved in advance of the needed leave, the claimant must notify the Division once the leave begins.
5. A claimant may appeal an adverse claim determination pursuant to 7 CCR 1107-9.

6. An award of benefits does not preclude future investigation or oversight by the Division.
7. It is the individual's burden to prove by preponderance of the evidence that they are eligible for paid family and medical leave benefits.

3.10 Covered Individual Obligations During Leave

1. A covered individual or their designated representative must notify the FAML I Division within ten (10) days after the occurrence of any event, or the foreseeability of any event, that could change the amount or duration of approved leave, including but not limited to the following:
 - A. A change in the covered individual's need to care for a new child, including death of the child, placement of the child in another home, or a caregiving arrangement whereby someone other than the covered individual provides care;
 - B. A change in the covered individual's own serious health condition or need to care for a family member with a serious health condition, including death of the family member or any increase or decrease in the care the covered individual must provide;
 - C. A change in the covered individual's need for exigency leave;
 - D. A change in the covered individual's need for safe leave;
 - E. Any event resulting in the covered individual no longer being localized to Colorado, pursuant to 7 CCR 1107-1 and its provisions regarding in-state status of employees;
 - F. An addition or loss of one or more jobs;
 - G. A change in the covered individual's regular work schedule;
 - H. Any change in employment, including unemployment, retirement, or any gained or lost source of employment or self-employment; or
 - I. Any filing or termination of a claim for family and medical leave insurance benefits with a private plan during a period of paid family and medical leave under the state plan.
2. If a covered individual notifies the Division of an event that would increase the amount, duration, or frequency of benefits, the Division may require the covered individual to submit additional documentation in support of their claim.
3. If information reported to the Division results in an increase or decrease in the duration or frequency of leave awarded to a covered individual, the Division will

promptly and contemporaneously notify the employer and the covered individual of the change.

4. If a covered individual receives a reduced leave schedule or intermittent leave, the covered individual must submit documentation sufficient to recertify their need for leave every six months, or as requested by the Division for claim management purposes. Upon recertification, the Division will notify the covered individual and the employer or employers from which the covered individual is taking leave, and will include in that notification any changes in the duration or frequency of the approved leave. If an individual fails to recertify, the approval for the leave will expire and the Division will notify the employer or employers from which the covered individual was taking leave.
5. A covered individual receiving reduced leave schedule or intermittent leave must notify the Division of their regular work schedule and individual absences on a weekly basis in order to receive wage replacement benefits for the absences. If the individual does not report their regular work schedule by the deadline established by the Division, the Division will accept this as communication from the individual that their regular work schedule has not changed from the most recently reported regular work schedule. If the individual does not report absences for a week by the deadline established by the Division, the Division will accept this as communication from the individual that no approved absences occurred in that week. The Division may deny a claimant's request to modify a past notification of their regular work schedule or individual absences unless the claimant provides both good cause for their failure to provide timely notifications, and evidence supporting the modification.
6. A covered individual receiving continuous leave must notify the Division of any hours worked in any employment for which they are taking continuous leave within seven (7) days of performing that work.

3.11 Benefits Reconsiderations

1. A claimant or an employer from which a claimant is taking leave may request a reconsideration of a decision to award or deny paid family and medical leave benefits if they have a good-faith belief, supported by evidence, that the Division has granted and/or paid family and medical leave insurance benefits to a claimant in an amount, duration, or frequency not authorized by the FAMLI Act and its implementing regulations.
2. Requests for reconsiderations must be submitted within 49 days of the date of the original determination. The deadline to request a reconsideration may be extended by up to a maximum of forty-nine (49) days for good cause. If a deadline falls on a weekend or State holiday, the deadline shall become the next business day.

3. The claimant and all employers from which the claimant has applied to take paid family and medical leave will be notified of the request for reconsideration. Any party may submit additional documents, statements, or other evidence in support of their request.
4. Upon receiving a request for a reconsideration, the Division may request any reasonably necessary evidence.
5. After receiving the request for reconsideration and gathering any reasonably necessary evidence, the Division will issue a reconsideration of the claimant's eligibility for paid family and medical leave benefits as soon as is practicable. The reconsideration will be sent to both the claimant and all employers from which the claimant has applied to take paid family and medical leave.
6. A request for a reconsideration of an initial benefits determination must be made before the Division will accept an appeal of such a determination pursuant to 7 CCR 1107-9.
7. No party may request a reconsideration of any determination made by the Division other than an initial benefits determination, unless otherwise provided by the FMLI Act and its implementing regulations. All other determinations may only be challenged by filing an appeal pursuant to 7 CCR 1107-9.
8. Frivolous, unsubstantiated, or bad-faith requests for a reconsideration from an employer may constitute discrimination, interference, or retaliation in violation of C.R.S. § 8-13.3-509.
9. The Division may issue a reconsideration of an initial benefits determination on its own volition regardless of whether a reconsideration has been requested.
10. To initiate the Division's review of a private plan's initial benefits determination, a claimant must file an appeal pursuant to 7 CCR 1107-9.

3.12 Fitness for Duty

Nothing in the FMLI Act or its implementing regulations prohibits an employer from requiring a covered individual to provide certification of his or her fitness for duty prior to returning to work from a FMLI-approved absence, so long as such a requirement does not constitute discrimination, retaliation, or interference in violation of C.R.S. § 8-13.3-509.

3.13 Disqualification from Benefits

1. If the Division determines that a covered individual has willfully made a false statement or misrepresentation regarding a material fact in order to obtain family and medical leave insurance benefits, or has willfully failed to report a material fact in order to obtain family and medical leave insurance benefits, the covered

individual will be disqualified from family and medical leave insurance benefits for one year after the effective date of the disqualification.

2. The Division will notify the claimant of any disqualification of benefits by issuing a determination to the claimant, and the claimant may appeal the disqualification in accordance with 7 CCR 1107-9.
3. If the claimant does not appeal the disqualification, the effective date of the disqualification shall be the earlier of:
 - A. The day after the appeal deadline; or
 - B. The day the Division receives notification from the claimant of the claimant's decision not to contest the disqualification.
4. If the claimant does not appeal the disqualification, or if the Division upholds the claimant's disqualification upon appeal, the Division will notify the claimant's employer or employers of the disqualification.
5. If the Division or a court upholds the claimant's disqualification upon appeal, the effective date of the disqualification shall become the date of the decision or order upholding the initial disqualification.
6. If a claimant is disqualified from family and medical leave insurance benefits, the claimant's employer or employers remain obligated to remit premiums for the claimant in accordance with the FAMLI Act, and remain entitled to require premium contributions from the employee in accordance with the FAMLI Act.

3.14 Benefit Underpayments

If the Division identifies a benefit underpayment, it will make a reasonable effort to obtain accurate contact information from the underpaid individual, and will issue the underpaid amount to the individual as soon as practicable. If the Division cannot obtain accurate contact information from the underpaid individual, the Division will remit the underpaid amount to the Colorado Department of Treasury in accordance with the Colorado Revised Uniform Unclaimed Property Act, C.R.S. § 38-13-101 et seq.

3.15 Language Accessibility

The Division will make reasonable efforts to make forms and communications under these rules available in an individual's primary language, subject to the Division's sole discretion based on available resources.

Editor's Notes

History

New rule eff. 10/15/2022.

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Rule 3.5 16 emer. rule eff. 01/01/2026.

Rules 3.1 3, 3.5 16 eff. 04/30/2026.

Rules 3.1 3, 3.4 1 eff. 07/01/2026.